

STATE OF NEW YORK

7660--A

2025-2026 Regular Sessions

IN SENATE

April 25, 2025

Introduced by Sens. MAYER, FERNANDEZ -- read twice and ordered printed, and when printed to be committed to the Committee on Education -- recommitted to the Committee on Education in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to contracts regarding bus drivers and bus driver's assistants; and providing for the repeal of such provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 23 of section 1604 of the education law, as
2 amended by chapter 269 of the laws of 1974, is amended to read as
3 follows:
4 23. To contract with any person, corporation or other school district
5 for the conveyance of pupils residing within the district, when author-
6 ized to do so under subdivision nineteen of section two thousand twen-
7 ty-one of this chapter, by vote of the inhabitants of the district enti-
8 tled to vote, or to contract for the operation, maintenance and garaging
9 of motor vehicles owned by the district, in accordance with such rules
10 and regulations as such trustees may establish, consistent with the
11 regulations of the commissioner [~~of education~~]. Upon authorization by a
12 school district meeting, every such contract of transportation may be
13 made for a period not exceeding five years, notwithstanding any
14 provision of any other law inconsistent herewith. Notwithstanding any
15 provision of law to the contrary, any school district located within the
16 counties of Nassau and Suffolk with respect to contracts entered into
17 under this subdivision for the conveyance of pupils, where a district
18 intends to request a contractor remove a bus driver or driver's assist-
19 ant from service to such district, the district shall, prior to making
20 such request, provide the driver or driver's assistant with written
21 notice of its intent to seek such removal, stating the reasons therefor

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

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1 including any supporting documentation, and shall afford such driver or
2 driver's assistant a reasonable opportunity to be heard before the
3 district issues a written removal or disqualification request to the
4 contracted company. Such notice and hearing requirements shall not apply
5 where the district determines, in its sole discretion, that the contin-
6 ued service of such driver or driver's assistant poses an immediate risk
7 to the safety or welfare of students.

8 § 2. This act shall take effect immediately and shall expire and be
9 deemed repealed 3 years after such date.